



Whistleblower Program & Customer Education Initiatives

2025 Annual Report

February 2026

I. INTRODUCTION

Section 748 of the Dodd-Frank Wall Street Reform and Consumer Protection Act¹ amended the Commodity Exchange Act (“CEA”) by adding Section 23, entitled “Commodity Whistleblower Incentives and Protection.”² CEA Section 23 established a whistleblower program under which the Commodity Futures Trading Commission (the “Commission” or “CFTC”) will pay awards, based on collected monetary sanctions and under regulations prescribed by the Commission, to eligible whistleblowers who voluntarily provide the Commission with original information³ about violations of the CEA that leads either to a “covered judicial or administrative action” or a “related action.”⁴ CEA Section 23 also established the CFTC Customer Protection Fund (“CPF” or “Fund”) to pay whistleblower awards and to fund “customer education initiatives designed to help customers protect themselves against fraud or other violations of [the CEA], or the rules and regulations

¹ Dodd-Frank Wall Street Reform and Consumer Protection Act, Public Law (Pub. L.) No. 111-203, § 748, 124 Stat. 1739.

² 7 U.S.C. § 26.

³ Section 23(b)(1) of the Act, 7 U.S.C. § 26(b)(1), requires the whistleblower’s information to be original information. Original information, in turn, is information that:

- (A) is derived from the independent knowledge or analysis of a whistleblower;
- (B) is not known to the Commission from any other source, unless the whistleblower is the original source of the information; and
- (C) is not exclusively derived from an allegation made in a judicial or administrative hearing, in a governmental report, hearing, audit, or investigation, or from the news media, unless the whistleblower is a source of the information.

7 U.S.C. § 26(a)(4); 17 C.F.R. § 165.2(k). Independent analysis is “the whistleblower’s own analysis, whether done alone or in combination with others,” and independent knowledge is “factual information in the whistleblower’s possession that is not generally known or available to the public.” 17 C.F.R. § 165.2(g), (h). The whistleblower may gain independent knowledge from his or her experiences, communications, and observations in business or social interactions. *Id.* § 165.2(g).

⁴ A “covered judicial or administrative action” is “any judicial or administrative action brought by the Commission under [the CEA] that results in monetary sanctions exceeding \$1,000,000.” 7 U.S.C. § 26(a)(1). The term “related action,” when used with respect to any judicial or administrative action brought by the Commission under the CEA, means “any judicial or administrative action brought by an entity described in [7 U.S.C. § 26(h)(2)(C)(i)(I)-(VI)] that is based upon the original information provided by a whistleblower pursuant to [7 U.S.C. § 26(a)] that led to the successful enforcement of the Commission action.” *Id.* § 26(a)(5).

thereunder.”⁵ To carry out these objectives, the CFTC established the Whistleblower Office (“WBO”) and Office of Customer Education and Outreach (“OCEO”).

CEA Section 23(g)(5) requires the Commission to transmit an annual report to the Committee on Agriculture, Nutrition and Forestry of the Senate, and the Committee on Agriculture of the House of Representatives, on the following:

- Commission’s Whistleblower Program, including a description of the number of awards granted and the types of cases in which awards were granted during the preceding fiscal year;
- customer education initiatives that were funded by the Fund during the preceding fiscal year;
- balance of the Fund at the beginning of the preceding fiscal year;
- amounts deposited into or credited to the Fund during the preceding fiscal year;
- amount of earnings on investments of amounts in the Fund during the preceding fiscal year;
- amount paid from the Fund during the preceding fiscal year to whistleblowers;
- amount paid from the Fund during the preceding fiscal year for customer education initiatives;
- balance of the Fund at the end of the preceding fiscal year; and
- complete set of audited financial statements, including a balance sheet, income statement,⁶ and cash flow analysis.

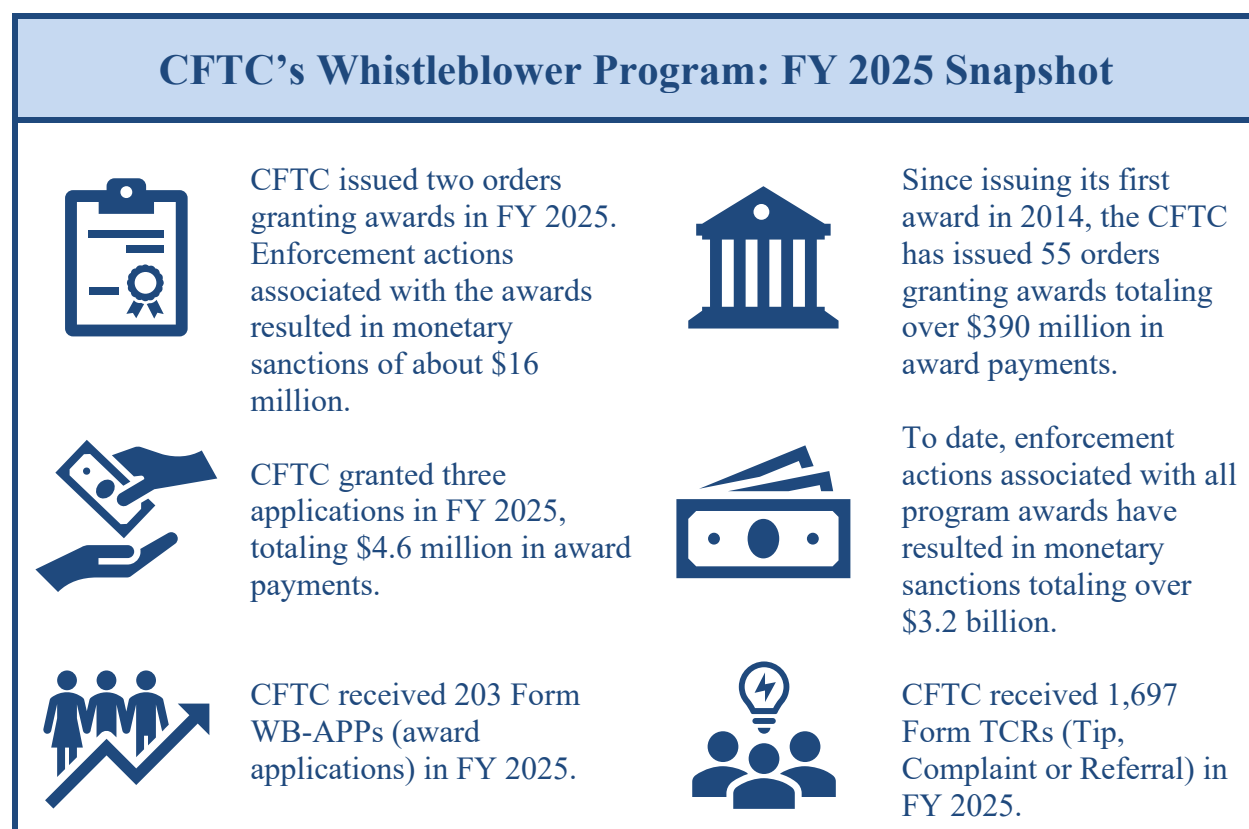
This report covers the period from October 1, 2024, through September 30, 2025 (“Period” or “FY 2025”).

⁵ 7 U.S.C. § 26(g)(2).

⁶ Federal Accounting Standards do not identify an “income statement” as a financial statement applicable to the Federal Government. Instead, the Federal Accounting Standards Advisory Board Statement of Federal Financial Accounting Concepts 2 (http://files.fasab.gov/pdffiles/handbook_sffac_2.pdf) identifies the “statement of net cost” as the equivalent financial statement. A “statement of net cost” is included in the attached audited financial statements.

II. WHISTLEBLOWER PROGRAM AND AWARDS

During the Period, the whistleblower program continued to work as Congress intended. The program helps the Commission identify wrongdoers, encourages disclosure of violations of the CEA, and rewards whistleblowers for taking risks in coming forward. Many different types of whistleblowers have participated in the program, including victims, witnesses, insiders, market participants, employees, and compliance professionals.



In FY 2025, the CFTC received 1,697 Form TCRs (Tip, Complaint or Referral) and 203 Form WB-APPs (whistleblower award applications). The CFTC issued two award orders granting three applications. The awards totaled \$4.6 million in payments. Enforcement actions associated with these awards resulted in a collection of \$16 million in sanctions. The CFTC also issued 120 denials this Period to claimants who submitted applications that failed to meet

requirements under 7 U.S.C. § 26 and 17 C.F.R. pt. 165. Since making its first award in 2014, CFTC has issued 55 orders granting awards totaling nearly \$390 million in payments. As indicated on the WBO’s website, www.whistleblower.gov, enforcement actions associated with all program awards have resulted in monetary sanctions totaling over \$3.2 billion.

A. Whistleblower Awards Issued in FY 2025

1. CFTC awarded nearly \$4 million to two whistleblowers

The CFTC awarded nearly \$4 million to two whistleblowers who provided original information leading to the successful enforcement of a covered action.⁷ Information from both whistleblowers formed the basis for the CFTC’s investigations. The violations resolved in the covered action related to the integrity of the markets the CFTC oversees. The first whistleblower provided information earlier in time, and the second whistleblower reported that the violations persisted. While both whistleblowers provided specific, credible, and timely assistance to the CFTC, the Commission awarded the first whistleblower a higher award amount for reporting earlier, among other reasons. Timely reports to the CFTC are critical for enforcement, and the CFTC encourages whistleblowers to come forward as soon as possible.⁸

2. CFTC awarded approximately \$700,000 to a whistleblower

The CFTC awarded approximately \$700,000 to one whistleblower whose information prompted the Commission to open an investigation. The whistleblower then provided substantial assistance and helped the CFTC conserve resources during the investigation. The CFTC reduced the award amount, however, because of the whistleblower’s unreasonable delay in reporting the

⁷ A “covered judicial or administrative action” means any judicial or administrative action brought by the Commission under the Commodity Exchange Act whose successful resolution results in monetary sanctions exceeding \$1,000,000. 17 C.F.R. § 165.2(e).

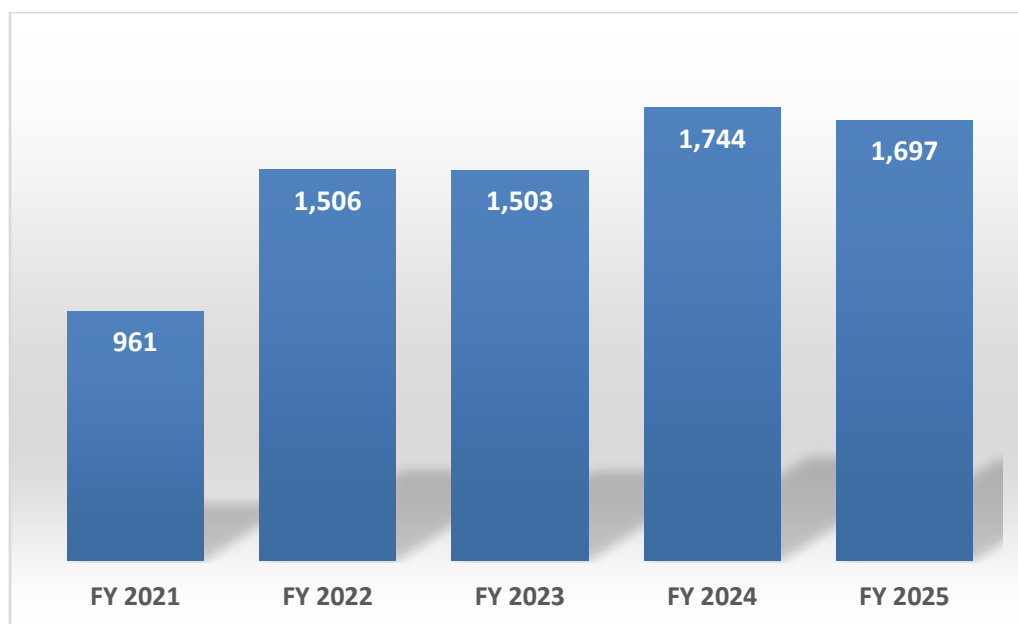
⁸ See CFTC Whistleblower Award Determination 25-WB-01 (Nov. 8, 2024); CFTC Press Rel. No. 9006-24, “CFTC Awards \$4M to Two Whistleblowers.” <https://www.cftc.gov/PressRoom/PressReleases/9006-24>.

violations and the whistleblower’s culpability. The CFTC acknowledges that whistleblowers often provide the most valuable evidence about wrongdoing. The Commission remains committed to rewarding whistleblowers for their significant contributions in identifying fraud, manipulation, and abuse in derivatives markets.⁹

B. CFTC Form TCRs

During the Period, the WBO received 1,697 whistleblower Form TCRs (Tip, Complaint or Referral).¹⁰ About a third of the CFTC’s leads originated from the Form TCR, and 30% of open investigations involved CFTC whistleblowers. Figure 1 below shows the number of Form TCRs the Commission received over the last five fiscal years.

Figure 1: Whistleblower tips received in the last five fiscal years



In FY 2025, the Commission continued to receive many Form TCRs about crypto fraud

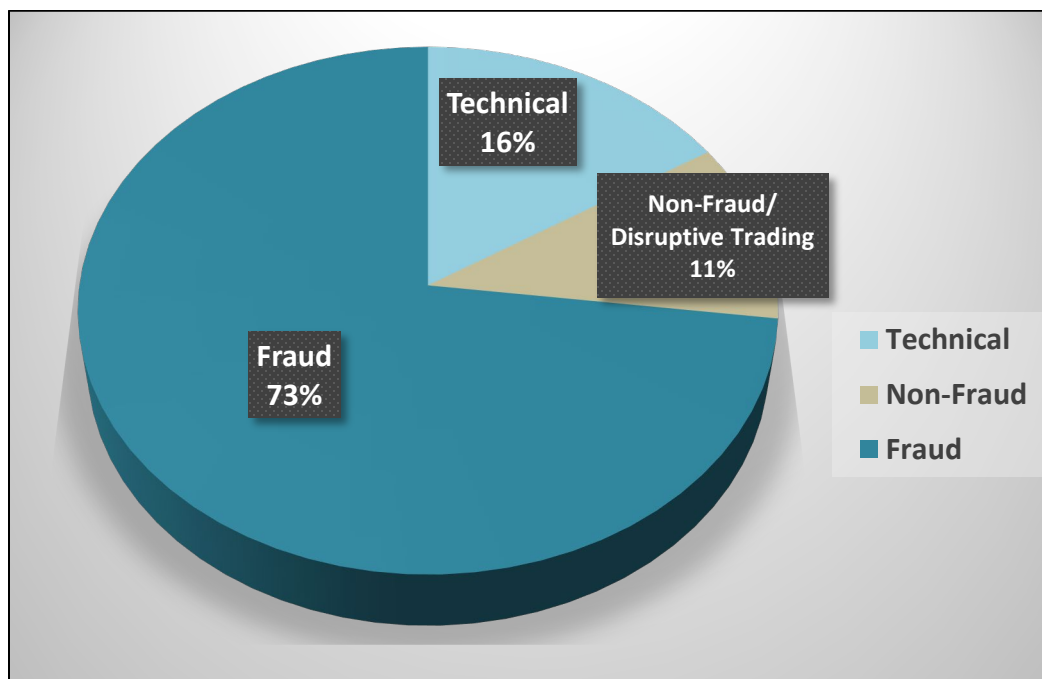
⁹ See CFTC Whistleblower Award Determination 25-WB-07 (May 29, 2025); CFTC Press Rel. No. 9081-25, “CFTC Awards Approximately \$700,000 to Whistleblower.” <https://www.cftc.gov/PressRoom/PressReleases/9081-25>.

¹⁰ See File a Tip or Complaint: <https://www.whistleblower.gov/overview/submitatip>.

and scams. Common allegations included fraudulent representations of investment returns and customers' inability to withdraw funds after investing. Other whistleblower allegations ranged from registration and recordkeeping violations to disruptive trading, such as spoofing and market manipulation. The WBO received whistleblower complaints from many different countries this Period, with most submissions originating from the U.S., Canada, and the United Kingdom.

Figure 2 below reflects the types of complaints whistleblowers submitted to the Commission this Period.

Figure 2: Types of Complaints Submitted by Whistleblowers in FY 2025



Brief Overview of Whistleblower Complaint Activity Types

Technical (recordkeeping, registration, reporting, segregated funds)

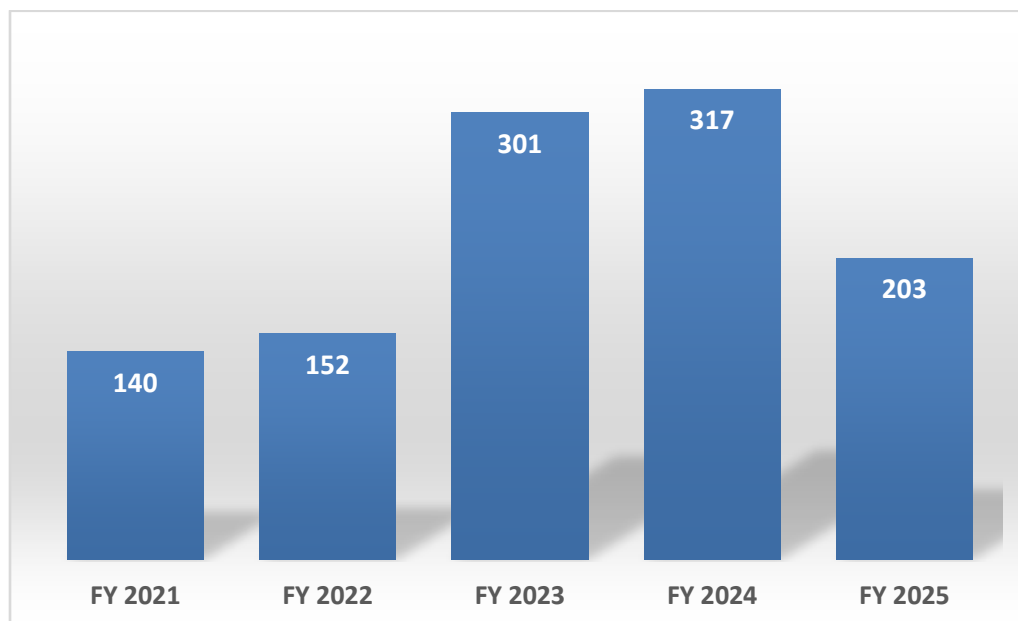
Non-Fraud / Disruptive Trading (spoofing, wash trades, trading on nonpublic information, manipulation, false statements)

Fraud (Ponzi schemes, crypto scams, etc.)

C. CFTC Form WB-APPs

For every judgment or order the CFTC obtains after July 21, 2010, that imposes more than \$1 million in monetary sanctions, the WBO will post on its website a notice called the Notice of Covered Action (“NCA”) about that action.¹¹ Each NCA announces the application filing deadline for that action. During the Period, the WBO posted 20 NCAs and received 203 Form WB-APPs. Figure 3 below shows the number of Form WB-APPs the Commission received in the last five fiscal years.

Figure 3: Form WB-APPs Received FYs 2021-2025



D. Whistleblower Education and Outreach

The WBO’s constituencies include whistleblowers and their counsel, industry groups, other government agencies, self-regulatory organizations, and academics. In FY 2025, the WBO raised awareness about the program by speaking on panels, updating the WBO website, answering questions from the public, and attending conferences and industry events. WBO staff

¹¹ 17 C.F.R. § 165.7(a).

also continued to explain the program’s eligibility rules and requirements to potential whistleblowers. Several notable events WBO staff attended are described below.

1. National Whistleblower Appreciation Day in Washington, D.C.

The National Whistleblower Center hosts an event annually on July 30 in Washington, D.C., to commemorate National Whistleblower Appreciation Day. This event brings together whistleblowers, government officials, members of Congress, and whistleblower advocates to recognize the important role that whistleblowers play. This year’s speakers featured senior members of Congress, officials from the Internal Revenue Service (“IRS”), former whistleblowers, whistleblower attorneys, and WBO staff.¹² The event covered topics ranging from artificial intelligence to financial fraud to the False Claims Act (31 U.S.C. §§ 3729-3733). Multiple WBO staff attended the event to show support for whistleblowers and foster relationships with stakeholders in the whistleblower community.

2. Practising Law Institute (“PLI”)’s Government Regulator and Whistleblower Law Update

WBO staff spoke on a panel titled “Government Regulator and Whistleblower Law Update” as part of a whistleblowing PLI program.¹³ The panel also featured whistleblower attorneys and a speaker from the Office of the Whistleblower of the Securities and Exchange Commission (“SEC”), which administers a similar whistleblower program. The panelists discussed priorities and activities of the CFTC and SEC whistleblower programs, as well as the similarities and differences between various federal whistleblower programs, among other topics.

¹² National Whistleblower Day 2025 Speakers, <https://www.nationalwhistleblowerday.org/speakers/>.

¹³ PLI Corporate Whistleblowing in 2025, <https://www.pli.edu/programs/corporate-whistleblowing/416009#overview>

3. Navigating Whistleblower Protections and Incentives: Key Insights from the SEC, CFTC, and DOJ

In FY 2025, WBO staff also engaged in outreach at law firms to raise awareness about the program. To that end, WBO staff appeared on a panel hosted at a law firm in Washington, D.C., titled “Navigating Whistleblower Protections and Incentives: Key Insights from the SEC, CFTC, and DOJ.” The panel featured the leaders of the whistleblower offices at the SEC, DOJ, and the CFTC.¹⁴ The panelists explained how their programs work, the roles whistleblowers play in enforcing and shaping federal laws, and how whistleblower programs and enforcement strategies may change in the coming years.

4. The Anti-Fraud (“TAF”) Coalition’s Annual Financial Frauds Conference

WBO staff spoke at TAF Coalition’s Annual Financial Frauds Conference. The conference included panels that discussed priorities at various agencies, including the SEC, CFTC, and DOJ.¹⁵ The panel provided a general overview of areas of priority to the government generally, such as procurement and healthcare fraud. The overall message was that agencies continue to value whistleblowers’ contributions to enforcement actions against fraudsters.

5. Cambridge University’s International Symposium on Economic Crime

WBO staff spoke at Cambridge University’s International Symposium on Economic Crime. The conference brought together experts from across the globe to address issues arising from economic crime and related misconduct.¹⁶ Participants included legislators, policy makers, law enforcement, security and intelligence personnel, regulators, compliance officials,

¹⁴ Navigating Whistleblower Protections and Incentives: Key Insights from the SEC, CFTC, and DOJ, <https://www.klgates.com/Navigating-Whistleblower-Protections-and-Incentives-Key-Insights-from-the-SEC-CFTC-and-DOJ-10-24-2024-1>.

¹⁵ Takeaways From TAF Coalition’s 3rd Annual Financial Frauds Conference, <https://www.taf.org/takeaways-from-fin-fraud-conference/>.

¹⁶ The Cambridge International Symposium on Economic Crime, <https://www.crimesymposium.org/>.

practitioners, and academics. The symposium provided a platform for the practical discussion of cross-border issues confronting personnel in law enforcement and regulation.

E. Enhancing WBO Operations and Protecting Whistleblowers' Identities

In this Period, WBO staff continued to improve its website, respond to questions internally and externally, and take actions to protect whistleblowers' identities in investigations. WBO staff also improved internal policies and procedures and participated in bimonthly meetings with other federal agencies with whistleblower programs.

1. Updating the WBO Website

The WBO's website, <https://www.whistleblower.gov>, serves as a one-stop-shop for all information related to the program. It offers answers to frequently asked questions and contains an online portal for users to submit whistleblower complaints and applications electronically.¹⁷ In addition, the website outlines whistleblowers' rights and protections and provides links to program rules,¹⁸ award orders, NCAs, and press releases. During the Period, the website reported roughly 148,000 pageviews and 50,000 subscribers registered to receive email updates about the program. The WBO continued to post alerts and publicize topics of interest on its website. Previous topics included carbon markets, romance scams, the Bank Secrecy Act (12 U.S.C. § 1829b, 12 U.S.C. §§ 1951-1960, 31 U.S.C. §§ 5311-5314, §§ 5316-5336), money laundering, bribery and corrupt practices, insider trading, crypto and digital assets, and spoofing.¹⁹ Through these alerts, the WBO educates potential whistleblowers about ways they can help stop violations of the CEA and become eligible for awards.

¹⁷ See Frequently Asked Questions, <https://www.whistleblower.gov/FAQs>, and Things To Know, <https://www.whistleblower.gov/news/thingstoknow>.

¹⁸ The Whistleblower Program rules are codified at 17 C.F.R. pt. 165.

¹⁹ These alerts are available at <https://www.whistleblower.gov/whistleblower-alerts>.

2. Responding to Questions to the WBO Inbox

During the Period, WBO staff continued to respond to questions from whistleblowers, potential whistleblowers, and members of the public using the WBO inbox, whistleblower@cftc.gov. The WBO processed about 1,000 emails sent to the WBO inbox. Processing incoming emails requires a review of several datasets, a preliminary jurisdictional analysis, and appropriate disposition consistent with established CFTC procedures. Specifically, WBO staff (i) reviews all Form WB-APP and Form TCR inventories to assess the status and degree to which the email sender has previously interacted with the WBO and whether the sender is a whistleblower, (ii) conducts a preliminary jurisdictional analysis to assess whether the conduct referenced is within the CFTC's remit, (iii) handles each email in accordance with established procedures, such that staff will forward jurisdictional emails to the Commission's Division of Enforcement ("DOE"), and (iv) directs senders with non-jurisdictional complaints to contact other agencies such as the U.S. Department of Labor's Occupational Safety and Health Administration.

3. Protecting Whistleblowers' Identities in Investigations

The WBO plays an important role in protecting whistleblowers' identities. Section 23(h)(2) of the CEA, 7 U.S.C. § 26(h)(2), prohibits the Commission from disclosing information that could reasonably be expected to reveal the identity of a whistleblower, except in certain limited circumstances. For example, in an administrative or court proceeding, the Commission may be required to produce documents or other information that would reveal a whistleblower's identity. In other circumstances, the Commission may provide information, subject to confidentiality requirements, to other governmental or regulatory entities.

The WBO consults with DOE case teams on all requests coming from other government agencies to access the CFTC's investigative files. When necessary, WBO staff will withhold a Form TCR or apply redactions to a Form TCR to protect a whistleblower's identity. During the Period, the WBO reviewed 80 access requests from other government agencies and 188 requests to produce documents from the CFTC's investigative files. The WBO determined that 108 productions concerned whistleblower matters, and 24 productions implicated whistleblower-identifying information. The WBO took all steps necessary and consistent with Section 23(h)(2) of the CEA and Section 165.4 of the Whistleblower Rules, 17 C.F.R. § 165.4, to protect whistleblowers' identities.

4. Improving Internal Policies and Procedures

In FY 2025, the WBO focused on improving internal policies and procedures. To that end, the WBO compiled an office manual for internal use and training. Intended to serve as a desk reference, the manual provides an overview of the WBO's responsibilities and establishes certain policies and procedures to guide WBO staff in administering the program. The WBO intends to use the manual to facilitate efficiency and consistency. All WBO staff still conduct independent research to ensure they apply the latest legal standards relevant to each matter.

5. Working with Other Federal Whistleblower Programs

In FY 2025, WBO staff met with personnel from other federal agencies periodically to exchange ideas and discuss issues and trends across federal whistleblowing programs. Attendees included representatives from the IRS, SEC Office of the Whistleblower, DOJ, and the U.S. Department of the Treasury's Financial Crimes Enforcement Network. Topics ranged from sharing resources for working with whistleblowers, sector-specific information, legal standards

for investigations into retaliation under Sarbanes-Oxley Act and Dodd-Frank, and related action issues.

III. CUSTOMER EDUCATION INITIATIVES

The Office of Customer Education and Outreach (“OCEO”) administers the CFTC’s customer and public education initiatives within the Division of Market Oversight. Per the CEA, OCEO’s mission and responsibilities are to design, develop, implement, and evaluate “customer education initiatives designed to help customers protect themselves against fraud or other violations of [the CEA], or the rules and regulations thereunder.”²⁰

In FY 2025, OCEO focused on three priorities:

- **Customer Outreach:** Increase awareness of fraud, scams, and other violations through strategic outreach campaigns that target affected market customers or communities that could influence customers, such as podcasters.
- **Customer Education:** Warn customers of potential CEA violations through advisories, outreach, social media, and email.
- **Partnerships:** Build and utilize partnerships with federal, state, and nonprofit organizations to amplify OCEO’s anti-fraud messaging and identify new scam trends.

A. Customer Outreach

OCEO’s outreach focused on social media, in-person and virtual events, and engaging with and responding to customers via email. For the first two efforts, OCEO leveraged its partnerships with federal, state, local, and nonprofit partners to maximize its reach.

²⁰ See supra note 4.

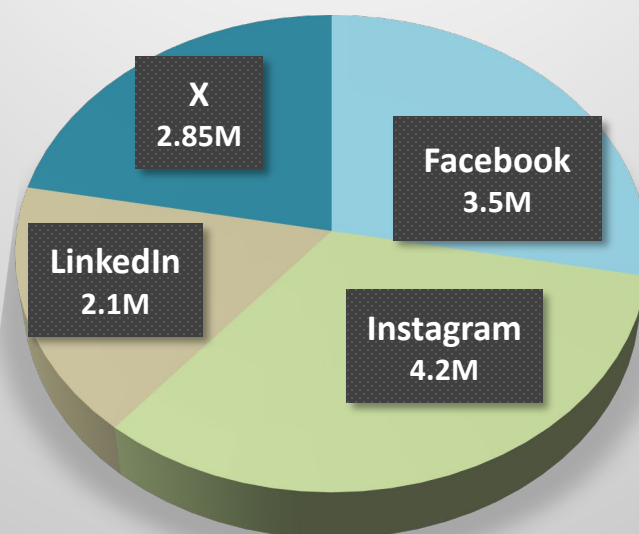
A highlight of OCEO's FY 2025 efforts was the "Dating or Defrauding" social media awareness campaign that warned Americans about relationship investment scams,²¹ referred to as "pig butchering" by the criminals. Structured around partnerships and earned media, the campaign reached more than 12 million people through the joint efforts of nearly 20 nonprofit, state, and federal partners²² that published warnings and other fraud awareness messages through their social media channels. The chart below illustrates the exceptional outreach levels of this initiative across major social media platforms.

²¹ In relationship investment scams, fraudsters build online relationships with unsuspecting individuals before convincing them to trade crypto assets or foreign currency on fake trading platforms. These scams often start with the targeted individual receiving a random or "wrong number" text message, meeting on a dating, or other social media apps. If the target responds, the communication quickly forms into a longer conversation and, in many cases, a relationship of trust with the fraudster. Eventually, the fraudster offers to introduce the target to cryptocurrency or over-the-counter foreign exchange (forex) trading, promising large gains. However, even though customers may be able to initially withdraw fake "profits," in the end the victims lose everything. The Federal Bureau of Investigation (FBI) had reports of over \$5.8 billion in losses last year to relationship investment scams that involved cryptocurrency. Actual losses are expected to be much higher due to underreporting of this type of fraud. See https://www.ic3.gov/AnnualReport/Reports/2024_IC3Report.pdf.

²² In addition to the CFTC, participating organizations included: the AARP's Fraud Watch Network; Arizona Corporation Commission's Securities Division; Colorado Department of Regulatory Agencies; FBI; Federal Deposit Insurance Corporation's (FDIC) Office of the Inspector General; Federal Trade Commission (FTC); Financial Crimes Enforcement Network; Financial Industry Regulatory Authority; the National Futures Association; the Oregon Department of Consumer and Business Services' Division of Financial Regulation; U.S. Secret Service; Securities and Exchange Commission (SEC); Social Security Administration's Office of the Inspector General; U.S. District Court (Washington, D.C.); U.S. Postal Inspection Service; U.S. Virgin Islands' Office of the Lt. Governor; and both the Washington and Wisconsin Departments of Financial Institutions.



Social Media Impressions by Major Platform



Because this type of fraud originates and unfolds online, the “Dating or Defrauding” initiative focused largely on social media messaging. Combined, the initiative’s partners and nearly 400 others who spontaneously joined the effort, generated 565 posts using the #DatingOrDefrauding hashtag. As noted in the chart above, these posts resulted in more than 12.65 million impressions across Facebook, Instagram, LinkedIn, and X, and more than 4,000 engagements, including likes, shares, comments, and clicks related to educational information.

The February 2025 campaign, timed to coincide with Valentine’s Day, received nationwide earned-media coverage that included a televised segment on CBS Mornings Plus²³ and a syndicated release of a 30-second report that aired on 327 local affiliate stations across the

²³ See <https://www.cbsnews.com/video/warning-signs-to-look-for-in-relationship-scams/>

United States with a potential viewership of 10.7 million Americans. The CFTC press release also received more than 1,800 online views, and related articles appeared in approximately 50 online news outlets.

In addition to spearheading the effort, OCEO released a customer advisory entitled “Help Warn Others About Relationship Investment Scams,”²⁴ during the campaign that promoted readers to share information about the scam with others and to report suspicious activity to authorities.

Throughout the year, OCEO continued to post advisories and related fraud-avoidance information across CFTC’s social media channels — Facebook, X, and LinkedIn. In total, these efforts yielded more than 105,000 impressions and nearly 700 clicks to fraud awareness educational materials.

Beyond social media engagement, OCEO staff interacted directly with approximately 8,000 people and 17 different federal, state, local and nonprofit partners through 28 in-person and virtual events held over the course of the fiscal year. A brief description of these FY 2025 outreach initiatives is as follows:

- Worked with state and local law enforcement, the SEC, FBI, and AARP to conduct scam awareness training during five events.
- Engaged in four events to inform military personnel, financial managers, and command financial specialists about anti-scam tactics and safeguards.
- Participated as an exhibitor at two podcast conferences to educate conference attendees and spread scam awareness.

²⁴ See <https://www.cftc.gov/LearnAndProtect/AdvisoriesAndArticles/DatingOrDefrauding.html>

- Participated in World Elder Abuse Awareness Day events in conjunction with the SEC, FBI, U.S. Secret Service, AARP, and Georgia and California state regulators.
- Worked with the banking industry to train bankers about scams and frauds. This outreach included holding in-person events to warn banking professionals about scams, participating in podcasts for banks and credit unions, and engaging in conversations with banking professionals about how they can identify customers who are being defrauded.
- Joined the Florida State AARP and U.S. Attorney's Office in Orlando, Florida, for a presentation to more than 70 residents of The Villages retirement community.
- Partnered with the Brooklyn District Attorney's Office, FBI, and SEC to educate a community of recent immigrants who were targeted by relationship investment scams in Brooklyn, New York.
- Collaborated with the New Jersey Bureau of Securities, FBI, and SEC at the Rotary Club in Montclair, New Jersey, to raise awareness about relationship investment scams.

OCEO also responded to more than 300 customer emails seeking information about possible scams. In most situations, customers reaching out to OCEO in this manner receive an immediate auto-response that provides information to help them report scams and review answers to other common questions. OCEO will then follow up with personalized responses to emailed questions, typically within one business day after the customer email is received. Of the customer emails received during FY 2025, the top two areas of customer interest were questions involving cryptocurrency (47 percent) and government imposter scams (33 percent).

A. Customer Education

OCEO's educational efforts focused on the continuous development and production of customer advisories and providing educational support and materials for its virtual and in-person



presentations. Over the course of FY 2025, OCEO developed and published five customer advisories and one investor education article that was co-released with the Financial Industry Regulatory Authority, the

North American Securities Administrators Association, and the SEC. OCEO also recorded a video of the CFTC's World Investor Week (WIW)²⁵ event featuring University of Texas at Austin Professor John Griffin as a guest speaker. In this video, Dr. Griffin discussed his research²⁶ into the patterns of fraud, money flows of relationship investment scams, and how they fund human trafficking.

This event, co-hosted by the University of Texas at Austin, was attended by more than 700 participants virtually and in-person at locations in Austin and Washington, D.C. In addition to Professor Griffin's presentation, representatives from the CFTC, FBI, Department of Justice (DOJ), and Treasury's Office of Financial Assets Control discussed the scope of the relationship investment scam problem and provided advice for how such scams could be avoided.

OCEO's collection of customer advisories and articles, which are made available online and serve as a ready resource for the public, was recently recognized in a Bloomberg News

²⁵ World Investor Week is a global week of recognition organized by the International Organization of Securities Commissions (IOSCO) to raise awareness about investor education and investor protection. For the video, see <https://www.cftc.gov/node/253556>

²⁶ Griffin, J. M., & Mei, K. (2024). How do crypto flows finance slavery? The economics of pig butchering. The Economics of Pig Butchering (February 29, 2024).

article as an important source of information about avoiding cryptocurrency scams.²⁷ Total views to OCEO articles and advisories in FY 2025 exceeded 449,000 and a complete list of OCEO educational content can be found at cftc.gov/learnandprotect/learningresources. Articles and advisories published by OCEO in FY 2025 include:

- Criminals Increasing Use of Generative AI to Commit Fraud,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/AI_Fraud.html
- Help Warn Others About Relationship Investment Scams,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/DatingOrDefrauding.html
- Avoiding Fraud May be Your Best Resolution,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/NewYear.html
- Social Isolation and the Risk of Investment Fraud,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/SocialIsolationInvestor.htm
- Use Caution Responding to Messaging Apps,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/MessagingApps.html
- Technology and Digital Finance: WIW 2024,
cftc.gov/LearnAndProtect/AdvisoriesAndArticles/TechnologyDigitalFinanceWIW.html

Overall, FY 2025 web traffic to the CFTC.gov's Learn & Protect section experienced a 38 percent increase in unique visitors and a 35 percent increase in page views above OCEO's FY 2024 reporting.

²⁷. See Cobo, M.C. (2025, July 31). How to Avoid a Crypto Scam. Bloomberg.
<https://www.bloomberg.com/explainers/how-to-spot-and-avoid-crypto-scams>

B. Partnerships

OCEO's stakeholder outreach seeks engagement with public, private, and nonprofit-sector partners, which in FY 2025 included a broad spectrum of federal, state, and local regulators, banking organizations, financial education, and nonprofit organizations. Collaborating with other organizations allows OCEO to deliver its messages to new audiences and collect important trend information from external sources and geographically diverse communities.

OCEO seeks to build these partnerships to amplify and expand its reach and engagement with new customer populations. Examples of these partnerships include joint military outreach with the SEC and participating in AARP webinars with the SEC, U.S. Secret Service, and the FBI. OCEO also participated in several virtual events, such as a Department of Defense Financial Readiness Network²⁸ event in October 2024, to raise awareness among military financial educators about fraud. Likewise, OCEO maintains relationships with organizations such as the Financial Literacy and Education Commission (FLEC) and the International Organization of Securities Commissions (IOSCO).

OCEO organized a panel for an IOSCO meeting in November 2024 that included representatives from the DOJ, FBI, and academia to discuss the global scope of these scams. In June 2025, OCEO moderated a panel for an IOSCO meeting to discuss the use of artificial intelligence by scammers. CFTC, supported by OCEO, also developed campaign materials and co-led a project with South Africa to support a relationship investment scam sub-campaign

²⁸ The Department of Defense's Financial Readiness Network is comprised of federal and non-federal entities who provide and share information on a range of financial readiness competency areas.

during the 2025 WIW that took place on October 6-10. As co-lead, CFTC drafted outreach materials to support the campaign and provided guidance to potential participants.

These working groups are generally comprised of approximately 100 participants from more than 18 federal member agencies as well as more than a dozen state government and local law enforcement entities.²⁹

IV. CUSTOMER PROTECTION FUND

As of September 30, 2025, the available balance of the Fund is \$212,679,118:

Description	FY 2025
Available Balance of the Fund as of September 30, 2024:	\$ 226,061,042
<i>Increases in Available Balance:</i>	
Amounts deposited into, or credited to, the Fund during the Period:	5,546 ³⁰
Amount of earnings on investments of amounts in the Fund during the Period:	10,825,401
<i>Decreases in Available Balance:</i>	
Amount obligated and/or paid from the Fund for whistleblower awards during the Period:	(6,121,164) ³¹
Amount obligated and/or paid from the Fund for whistleblower administration during the Period:	(4,924,865)
Amount obligated and/or paid from the Fund for customer education initiatives during the Period:	(2,549,795)

²⁹ Federal participants include: the departments of Treasury, Justice, and Homeland Security, the FBI, FDIC, the Federal Reserve Board, FTC, Immigration and Customs Enforcement, Internal Revenue Service, Office of the Comptroller of the Currency, SEC, and the Postal Inspection Service.

³⁰ Amounts deposited into, or credited to, the Fund during the Period consists of recoveries and refunds collected of \$5,546. When the available balance falls below \$100 million, the Commission transfers eligible collections into the Fund in accordance with 7 U.S.C. § 26(g)(3)(A). No custodial collections were eligible to be transferred into the Fund in FY 2025 because the available balance of the Fund exceeded \$100 million. The last eligible collection transferred into the Fund was \$242,819,443 received on June 8, 2022, when the available balance of the Fund was \$51,098,139.

³¹ Amounts obligated and/or paid from the Fund for whistleblower awards during the Period consists of awards disbursements of \$4.6 million, and an additional \$1.5 million was obligated for new awards that have not yet been disbursed.

Description	FY 2025
Amount sequestered from the Fund during the Period (not available for use by the Fund)	(617,048) ³²
Amount transferred in or out of the Fund during the Period:	(10,000,000)
Available Balance of the Fund as of September 30, 2025:	\$ 212,679,118

Attached as an Appendix to this report are the audited financial statements for the Fund, including a balance sheet, a statement of net cost, a statement of changes in net position, a statement of budgetary resources, and a supplementary cash flow analysis schedule.

³² The available balance of the Fund was reduced in FY 2025 by temporary sequestration of \$617,048, which is not available for use until apportioned by the Office of Management and Budget (OMB).

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U.S. Commodity Futures Trading Commission
OFFICE OF INSPECTOR GENERAL

MEMORANDUM



TO: Michael S. Selig, Chairman

FROM: Christopher Skinner, Inspector General

DATE: January 16, 2026

SUBJECT: Transmittal of the Fiscal Year 2025 Financial Statement Audit Report of the CFTC (25-AU-01)

We contracted with the independent public accounting firm Williams, Adley & Company, LLP (Williams Adley) to audit the financial statements of CFTC as of and for the fiscal year ended September 30, 2025. The objective of the audit is to provide a report on internal control over financial reporting, compliance with laws and other matters, and to provide an opinion on whether CFTC's financial management systems complied substantially with the requirements of the Federal Financial Management Improvement Act of 1996 (FFMIA). The contract required that the audit be performed in accordance with [U.S. generally accepted government auditing standards](#), [Office of Management and Budget audit guidance](#), and the [GAO/CIGIE Financial Audit Manual](#).

In its audit of CFTC, Williams Adley reported that CFTC:

- financial statements were presented fairly, in all material respects, in accordance with U.S. generally accepted accounting principles;
- maintained, in all material respects, effective internal control over financial reporting;
- financial management systems complied substantially with the requirements of FFMIA; and
- complied with provisions of laws tested or other matters.

Williams Adley is responsible for the attached auditor's report dated January 15, 2026, and the conclusions expressed therein. We do not express opinions on CFTC financial statements or internal control over financial reporting, or whether CFTC financial management systems complied substantially with the three requirements of FFMIA, or conclusions on compliance and other matters.

We appreciate the cooperation and support received from CFTC personnel during the audit. If you have any further questions, please contact Timothy Peoples, Lead Auditor.



Independent Auditor's Report

Chairman
U.S. Commodity Futures Trading Commission

Inspector General
U.S. Commodity Futures Trading Commission

In our audit of the fiscal year 2025 financial statements of the U.S. Commodity Futures Trading Commission (CFTC), we found:

- CFTC's financial statements as of and for the fiscal year ended September 30, 2025, is presented fairly, in all material respects, in accordance with U.S. generally accepted accounting principles;
- no material weaknesses¹ in internal control over financial reporting based on the limited procedures we performed; and
- no reportable noncompliance for fiscal year 2025 with provisions of applicable laws, regulations, contracts, and grant agreements we tested.

The following sections discuss in more detail (1) our report on the financial statements, which includes an emphasis-of-matter paragraph related to unfunded liability, required supplementary information (RSI)² and other information³ included with the financial statements; (2) our report on internal control over financial reporting; (3) our report on compliance with laws, regulations, contracts, and grant agreements.

Report on the Financial Statements

Opinion

In accordance with *Government Auditing Standards* issued by the Comptroller General of the United States; and OMB Bulletin No. 24-02, *Audit Requirements for Federal Financial Statements*, we have audited CFTC's financial statements. CFTC's financial statements comprise the balance sheet as of September 30, 2025; the related statements of net cost, changes in net position, budgetary resources,

¹ A material weakness is a deficiency, or combination of deficiencies, in internal control over financial reporting, such that there is a reasonable possibility that a material misstatement of the entity's financial statements will not be prevented, or detected and corrected, on a timely basis. A deficiency in internal control exists when the design or operation of a control does not allow management or employees, in the normal course of performing their assigned functions, to prevent, or detect and correct, misstatements on a timely basis.

² The RSI consists of the "Management's Discussion and Analysis" and the "Combined Statement of Budgetary Resources", which are included with the financial statements.

³ Other information consists of information included with the financial statements, other than the RSI and the auditor's report.

WILLIAMS, ADLEY & COMPANY-DC, LLP

Certified Public Accountants/ Management Consultants

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www.williamsadley.com

and custodial activity for the fiscal year then ended; and the related notes to the financial statements. In our opinion, CFTC's financial statements are presented fairly, in all material respects, CFTC's financial position as of September 30, 2025, and its net cost of operations, changes in net position, budgetary resources, and custodial activity for the fiscal year then ended in accordance with U.S. generally accepted accounting principles.

Basis for Opinion

We conducted our audit in accordance with auditing standards generally accepted in the U.S. and the U.S. generally accepted government auditing standards. Our responsibilities under those standards are further described in the Auditor's Responsibilities for the Audit of the Financial Statements section of our report. We are required to be independent of CFTC and to meet our other ethical responsibilities, in accordance with the relevant ethical requirements relating to our audit. We believe that the audit evidence we have obtained is sufficient and appropriate to provide a basis for our audit opinion.

Responsibilities of Management for the Financial Statements

CFTC management is responsible for:

- the preparation and fair presentation of these financial statements in accordance with U.S. generally accepted accounting principles;
- preparing, measuring, and presenting the RSI in accordance with U.S. generally accepted accounting principles;
- preparing and presenting other information included in CFTC's Agency Financial Report, and ensuring the consistency of that information with the audited financial statements and the RSI; and
- designing, implementing, and maintaining effective internal control relevant to the preparation and fair presentation of financial statements that are free from material misstatement, whether due to fraud or error.

Auditor's Responsibilities for the Audit of the Financial Statements

Our objectives are to (1) obtain reasonable assurance about whether the financial statements as a whole are free from material misstatement, whether due to fraud or error, and (2) issue an auditor's report that includes our opinion. Reasonable assurance is a high level of assurance but is not absolute assurance and therefore is not a guarantee that an audit of the financial statements conducted in accordance with U.S. generally accepted government auditing standards will always detect a material misstatement or a material weakness when it exists. The risk of not detecting a material misstatement resulting from fraud is higher than for one resulting from error, as fraud may involve collusion, forgery, intentional omissions, misrepresentations, or the override of internal control. Misstatements, including omissions, are considered to be material if there is a substantial likelihood that, individually or in the aggregate, they would influence the judgment made by a reasonable user based on the financial statements.

In performing an audit in accordance with U.S. generally accepted government auditing standards, we:

- Exercise professional judgment and maintain professional skepticism throughout the audit.
- Identify and assess the risks of material misstatement of the financial statements, whether due to fraud or error, and design and perform audit procedures responsive to those risks. Such procedures include examining, on a test basis, evidence regarding the amounts and disclosures in the financial statements.
- Obtain an understanding of internal control relevant to our audit of the financial statements in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of CFTC's internal control over financial reporting. Accordingly, no such opinion is expressed.
- Evaluate the appropriateness of accounting policies used and the reasonableness of significant accounting estimates made by management, as well as evaluate the overall presentation of the financial statements.
- Perform other procedures we consider necessary in the circumstances.

We are required to communicate with those charged with governance regarding, among other matters, the planned scope and timing of the audit, significant audit findings, and certain internal control–related matters that we identified during the financial statement audit.

Required Supplementary Information

U.S. generally accepted accounting principles issued by the Federal Accounting Standards Advisory Board (FASAB) require that the RSI be presented to supplement the financial statements. Such information is the responsibility of management and, although not a part of the financial statements, is required by FASAB, which considers it to be an essential part of financial reporting for placing the financial statements in appropriate operational, economic, or historical context.

We have applied certain limited procedures to the RSI in accordance with U.S. generally accepted government auditing standards. These procedures consisted of (1) inquiring of management about the methods used to prepare the RSI and (2) comparing the RSI for consistency with management's responses to our inquiries, the financial statements, and other knowledge we obtained during the audit of the financial statements, in order to report omissions or material departures from FASAB guidelines, if any, identified by these limited procedures. We did not audit and we do not express an opinion or provide any assurance on the RSI because the limited procedures we applied do not provide sufficient evidence to express an opinion or provide any assurance.

Other Information

CFTC's other information contains a wide range of information, some of which is not directly related to the financial statements. This information is presented for purposes of additional analysis and is not a required part of the financial statements or the RSI. Management is responsible for the other information included in CFTC's Agency Financial Report. The other information comprises the Inspector General's Assessment, Summary of Audit and Management Assurances, and Civil Monetary Penalty Adjustment for Inflation but does not include the financial statements and our auditor's report

thereon. Our opinion on the financial statements does not cover the other information, and we do not express an opinion or any form of assurance thereon.

In connection with our audit of the financial statements, our responsibility is to read the other information and consider whether a material inconsistency exists between the other information and the financial statements, or the other information otherwise appears to be materially misstated. If, based on the work performed, we conclude that an uncorrected material misstatement of the other information exists, we are required to describe it in our report.

Report on Internal Control over Financial Reporting

In connection with our audit of CFTC's financial statements, we considered CFTC's internal control over financial reporting, consistent with our auditor's responsibilities discussed below.

Results of Our Consideration of Internal Control over Financial Reporting

Our consideration of internal control was for the limited purpose described below and was not designed to identify all deficiencies in internal control that might be material weaknesses or significant deficiencies⁴ or to express an opinion on the effectiveness of CFTC's internal control over financial reporting. Given these limitations, during our 2025 audit, we did not identify any deficiencies in internal control over financial reporting that we consider to be material weaknesses. However, material weaknesses or significant deficiencies may exist that have not been identified.

Basis for Results of Our Consideration of Internal Control over Financial Reporting

We performed our procedures related to CFTC's internal control over financial reporting in accordance with U.S. generally accepted government auditing standards and Office of Management and Budget⁵ audit guidance.

Responsibilities of Management for Internal Control over Financial Reporting

CFTC management is responsible for designing, implementing, and maintaining effective internal control over financial reporting relevant to the preparation and fair presentation of financial statements that are free from material misstatement, whether due to fraud or error.

Auditor's Responsibilities for Internal Control over Financial Reporting

In planning and performing our audit of CFTC's financial statements as of and for the fiscal year ended September 30, 2025, in accordance with U.S. generally accepted government auditing standards, we considered CFTC's internal control relevant to the financial statement audit in order to design audit procedures that are appropriate in the circumstances, but not for the purpose of expressing an opinion on the effectiveness of CFTC's internal control over financial reporting. Accordingly, we do not express an opinion on CFTC's internal control over financial reporting. We are required to report all

⁴ A significant deficiency is a deficiency, or a combination of deficiencies, in internal control over financial reporting that is less severe than a material weakness, yet important enough to merit attention by those charged with governance.

⁵ Office of Management and Budget (OMB) Bulletin No. 24-02, *Audit Requirements for Federal Financial Statements*, issued on July 29, 2024. According to the guidance, for those controls that have been suitably designed and implemented, the auditor should perform sufficient tests of such controls to conclude on whether the controls are operating effectively (i.e., sufficient tests of controls to support a low level of assessed control risk). OMB audit guidance does not require the auditor to express an opinion on the effectiveness of internal control.

deficiencies that are considered to be significant deficiencies or material weaknesses. We did not consider all internal controls relevant to operating objectives, such as those controls relevant to preparing performance information and ensuring efficient operations.

Definition and Inherent Limitations of Internal Control over Financial Reporting

An entity's internal control over financial reporting is a process effected by those charged with governance, management, and other personnel. The objectives of internal control over financial reporting are to provide reasonable assurance that:

- transactions are properly recorded, processed, and summarized to permit the preparation of financial statements in accordance with U.S. generally accepted accounting principles, and assets are safeguarded against loss from unauthorized acquisition, use, or disposition, and
- transactions are executed in accordance with provisions of applicable laws, including those governing the use of budget authority, regulations, contracts, and grant agreements, noncompliance with which could have a material effect on the financial statements.

Because of its inherent limitations, internal control over financial reporting may not prevent, or detect and correct, misstatements due to fraud or error.

Intended Purpose of Report on Internal Control over Financial Reporting

The purpose of this report is solely to describe the scope of our consideration of CFTC's internal control over financial reporting and the results of our procedures, and not to provide an opinion on the effectiveness of CFTC's internal control over financial reporting. This report is an integral part of an audit performed in accordance with U.S. generally accepted government auditing standards in considering internal control over financial reporting. Accordingly, this report on internal control over financial reporting is not suitable for any other purpose.

Report on Compliance with Laws, Regulations, Contracts, and Grant Agreements

In connection with our audit of CFTC's financial statements, we tested compliance with selected provisions of applicable laws, regulations, contracts, and grant agreements consistent with our auditor's responsibilities discussed below.

Results of Our Tests for Compliance with Laws, Regulations, Contracts, and Grant Agreements

Our tests for compliance with selected provisions of applicable laws, regulations, contracts, and grant agreements disclosed no instances of noncompliance for fiscal year 2025 that would be reportable under U.S. generally accepted government auditing standards. However, the objective of our tests was not to provide an opinion on compliance with laws, regulations, contracts, and grant agreements applicable to CFTC. Accordingly, we do not express such an opinion.

Basis for Results of Our Tests for Compliance with Laws, Regulations, Contracts, and Grant Agreements

We performed our tests of compliance in accordance with U.S. generally accepted government auditing standards.

Responsibilities of Management for Compliance with Laws, Regulations, Contracts, and Grant Agreements

CFTC management is responsible for complying with laws, regulations, contracts, and grant agreements applicable to CFTC.

Auditor's Responsibilities for Tests of Compliance with Laws, Regulations, Contracts, and Grant Agreements

Our responsibility is to test compliance with selected provisions of applicable laws, regulations, contracts, and grant agreements applicable to CFTC that have a direct effect on the determination of material amounts and disclosures in CFTC's financial statements, and to perform certain other limited procedures. Accordingly, we did not test compliance with all laws, regulations, contracts, and grant agreements applicable to CFTC. We caution that noncompliance may occur and not be detected by these tests.

Intended Purpose of Report on Compliance with Laws, Regulations, Contracts, and Grant Agreements

The purpose of this report is solely to describe the scope of our testing of compliance with selected provisions of applicable laws, regulations, contracts, and grant agreements, and the results of that testing, and not to provide an opinion on compliance. This report is an integral part of an audit performed in accordance with U.S. generally accepted government auditing standards in considering compliance. Accordingly, this report on compliance with laws, regulations, contracts, and grant agreements is not suitable for any other purpose.

Williams, Adley & Company-DC, LLP

Washington, District of Columbia
January 15, 2026



FINANCIAL STATEMENTS FOR THE CUSTOMER PROTECTION FUND REPORT TO CONGRESS

as of September 30, 2025

Compilation Date: 12/8/2025 4:27 PM

U.S. COMMODITY FUTURES TRADING COMMISSION
CUSTOMER PROTECTION FUND REPORT TO CONGRESS: FINANCIAL STATEMENTS

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COMMODITY FUTURES TRADING COMMISSION
CUSTOMER PROTECTION FUND
BALANCE SHEET
AS OF SEPTEMBER 30, 2025

	2025
ASSETS	
Intragovernmental:	
Fund Balance With Treasury (Note 2)	\$ 26,482,720
Federal Investments (Note 3)	234,000,000
Advances and Prepayments	16,309
Total Intragovernmental	\$ 260,499,029
Other than Intragovernmental:	
General Property, Plant, and Equipment, Net (Note 4)	\$ 47,748
Total Other than Intragovernmental	\$ 47,748
TOTAL ASSETS	\$ 260,546,777
LIABILITIES	
Intragovernmental:	
Employer Contributions and Payroll Taxes Payable	\$ 26,804
Social Security and Medicare Taxes Payable	6,301
Total Intragovernmental	\$ 33,105
Other than Intragovernmental:	
Accounts Payable	\$ 2,621,178
Federal Employee Salary, Leave, and Benefits Payable:	
Accrued Funded Payroll	197,601
Unfunded Annual Leave	345,153
Funded Employee Benefits	5,518
Liability for Whistleblower Awards (Note 5)	399,675,304
Total Other than Intragovernmental	\$ 402,844,754
Total Liabilities	\$ 402,877,859
<i>Contingent Liabilities (Note 6)</i>	
NET POSITION	
Cumulative Results of Operations - Funds from Dedicated Collections	\$ (142,331,082)
Total Cumulative Results of Operations	\$ (142,331,082)
Total Net Position	\$ (142,331,082)
TOTAL LIABILITIES AND NET POSITION	\$ 260,546,777

The accompanying notes are an integral part of these financial statements.

**COMMODITY FUTURES TRADING COMMISSION
CUSTOMER PROTECTION FUND
STATEMENT OF NET COST
FOR THE YEAR ENDED SEPTEMBER 30, 2025**

		2025
NET COSTS OF OPERATIONS		
Gross Costs	\$	369,873,433
TOTAL NET COST OF OPERATIONS	\$	369,873,433

The accompanying notes are an integral part of these financial statements.

**COMMODITY FUTURES TRADING COMMISSION
CUSTOMER PROTECTION FUND
STATEMENT OF CHANGES IN NET POSITION
FOR THE YEAR ENDED SEPTEMBER 30, 2025**

	2025
CUMULATIVE RESULTS OF OPERATIONS:	
BEGINNING BALANCES	\$ 216,716,950
Nonexchange Interest Revenue	10,825,401
Net Cost of Operations	(369,873,433)
Net Change in Cumulative Results of Operations	(359,048,032)
TOTAL CUMULATIVE RESULTS OF OPERATIONS, ENDING	\$ (142,331,082)

The accompanying notes are an integral part of these financial statements.

**COMMODITY FUTURES TRADING COMMISSION
CUSTOMER PROTECTION FUND
STATEMENT OF BUDGETARY RESOURCES
FOR THE YEAR ENDED SEPTEMBER 30, 2025**

	2025
BUDGETARY RESOURCES	
Unobligated Balance from Prior Year Budget Authority, Net (Note 6A)	\$ 234,948,566
Spending Authority from Offsetting Collections	10,208,353
TOTAL BUDGETARY RESOURCES	\$ 245,156,919
STATUS OF BUDGETARY RESOURCES	
New Obligations and Upward Adjustments	\$ 13,595,823
Unobligated Balance, End of Year	
Apportioned, Unexpired Accounts	231,480,563
Unapportioned, Unexpired Accounts	80,533
Unobligated Balance, End of Year (Total)	231,561,096
TOTAL BUDGETARY RESOURCES	\$ 245,156,919
OUTLAYS, NET	
Outlays, Net	11,028,126
AGENCY OUTLAYS, NET	\$ 11,028,126

The accompanying notes are an integral part of these financial statements.

NOTES TO THE FINANCIAL STATEMENTS FOR THE YEAR ENDED SEPTEMBER 30, 2025

Note 1. Reporting Fund and Summary of Significant Accounting Policies

A. Reporting Fund

The Commodity Futures Trading Commission (CFTC or the Commission) is an independent agency of the executive branch of the Federal Government. Congress created the CFTC in 1974 under the authorization of the Commodity Exchange Act (CEA) with the mandate to regulate commodity futures and option markets in the United States.

The “Dodd-Frank Wall Street Reform and Consumer Protection Act” (the Dodd-Frank Act, or the Act) significantly expanded the powers and responsibilities of the CFTC. According to Section 748 of the Act, there is established in the U.S. Department of the Treasury (Treasury) a revolving fund known as the “Commodity Futures Trading Commission Customer Protection Fund” (the Fund). The Fund shall be available to the Commission, without further appropriation or fiscal year limitation, to pay awards to whistleblowers; and fund customer education initiatives designed to help customers protect themselves against fraud or other violations of this Act or the rules and regulations thereunder.

The Act requires CFTC to transmit to the Committee on Agriculture, Nutrition and Forestry of the Senate, and the Committee on Agriculture of the House of Representatives a report which includes a complete set of audited financial statements and supplementary information, including balance sheet, income statement, and cash flow analysis, no later than October 30, of each year.

B. Basis of Presentation

The financial statements have been prepared to report the financial position and results of operations for the Fund, as required by the Dodd-Frank Act. They are presented in accordance with the form and content requirements contained in OMB Circular A-136, *Financial Reporting Requirements*.

The financial statements have been prepared in all material respects in conformity with U.S. generally accepted accounting principles (GAAP), as prescribed for the Federal government by the Federal Accounting Standards Advisory Board (FASAB). The application and methods for applying these principles are appropriate for fairly presenting the entity’s assets, liabilities, financial position, net cost of operations, changes in net position, and budgetary resources. Accounting standards require all reporting entities to disclose that accounting standards allow certain presentations and disclosures to be modified, if needed, to prevent the disclosure of classified information.

The books and records of the Fund, which is a component of the Commission, served as the source of information for preparing the financial statements in the prescribed formats. All Fund financial statements

and reports used to monitor and control budgetary resources are prepared from the same books and records. The statements should be read with the understanding that they relate to a fund controlled by CFTC, a component of the U.S. Government.

The Balance Sheet presents the financial position of the Fund. The Statement of Net Cost presents the Fund's operating results and the Statement of Changes in Net Position displays the changes in the Fund's net position. The Statement of Budgetary Resources presents the sources, status, and uses of the Fund's resources and follows the rules for the Budget of the U.S. Government.

The Fund's transactions have been classified according to the type of entity with whom the transactions were made. Intragovernmental assets and liabilities are those from or to other federal entities. Intragovernmental costs are payments or accruals to other federal entities for goods and/or services provided. The CFTC does not transact business among its own operating units, and therefore, intra-entity eliminations were not needed.

C. Budgetary Resources and Status

The Dodd-Frank Act provides the Fund with permanent authority that is available without further appropriation or fiscal year limitation for the purpose of funding awards to whistleblowers and the operations of the Whistleblower Office and the Customer Education and Outreach Branch. However, prior to using the funds each fiscal year, the CFTC is required to have the funds apportioned by OMB.

The Fund is financed by transferring eligible monetary sanctions collected by the CFTC to the Fund unless the available balance of the fund exceeds \$100,000,000 on the day of collection. The CFTC tracks the available balance of the Fund on a daily basis to determine when the Fund requires replenishment.

The Fund's budgetary resources for FY 2025 consist of:

- Unobligated balances of resources brought forward from the prior year,
- Recoveries of obligations made in prior years, and
- New resources in the form of spending authority from offsetting collections.

D. Fund Balance with Treasury

Fund Balance with Treasury is the aggregate amount of the Fund's balance with Treasury. The balance in the Fund is available to pay current liabilities and finance authorized operations. The Fund does not maintain bank accounts of its own, has no disbursing authority, and does not maintain cash held outside of Treasury. Treasury makes disbursements for the Fund. Additional information regarding Fund Balance with Treasury is provided in Note 2. *Fund Balance with Treasury*.

E. Investments

The CFTC is authorized to invest the portion of the Fund that is not, in the Commission's judgment, required to meet the current needs of the Fund. The Commission invests available funds through the U.S.

Department of the Treasury's Bureau of the Fiscal Service. Investments are carried at their historical cost basis which approximates fair value due to their short-term nature.

Interest earned on the investments is a component of the Fund and is available to be used for expenses of the Fund. Additional information regarding investments is provided in Note 3. Investments.

F. General Property, Plant and Equipment, Net

The Commission capitalizes assets annually if they have useful lives of at least two years and an individual value of \$25,000 or more. Bulk or aggregate purchases are capitalized when the individual useful lives are at least two years and the purchase is a value of \$25,000 or more. Property, plant and equipment that do not meet the capitalization criteria are expensed when acquired. Depreciation for equipment and amortization for software is computed on a straight-line basis using a 5-year life. The Commission's assets are valued net of accumulated depreciation or amortization.

During FY 2025, the Commission began the development stage of software which will aid in the tracking of Whistleblower requests.

F. Liabilities

The Fund's liabilities include actual and estimated amounts that are likely to be paid as a result of transactions covered by the Whistleblower Incentives and Protection regulation and will be paid from available balances remaining in the Fund. The Fund's liabilities are considered current liabilities. In addition to liabilities covered by budgetary resources, the Fund's liabilities also include those not yet covered by budgetary resources. The Fund's liabilities not yet covered by budgetary resources consist of unfunded annual leave and the liability for whistleblower awards for which a preliminary determination has been made and communicated to the whistleblower(s) but for which a final award has not yet been issued.

G. Accounts Payable

Accounts payable consists primarily of liabilities for whistleblower awards finalized by the Commission but not yet paid and amounts due for goods and services received as of the end of the reporting period but not yet paid.

H. Accrued Payroll and Benefits and Annual Leave Liability

The salaries and operating expenses of the Whistleblower's Office and Customer Education and Outreach Branch are funded through the Fund. The accrued payroll liability represents amounts for salaries and benefits owed for the time since the payroll was last paid through the end of the reporting period. Total accrued payroll is composed of amounts to be paid to Fund employees as well as the related intragovernmental payable for employer contributions and payroll taxes. The annual leave liability is the amount owed to employees for unused annual leave as of the end of the reporting period. At the end of each

quarter, the balance in the accrued annual leave account is adjusted to reflect current balances and pay rates. Sick leave and other types of non-vested leave are expensed as taken.

I. Net Position

The Fund operates solely through offsetting collections and therefore does not record unexpended appropriations. The Fund's net position consists of cumulative results of operations that represent the excess of financing sources over expenses since inception. Cumulative results of operations are derived from the net effect of capitalized assets, expenses, and revenue. The balance in cumulative results of operations can be negative when unfunded expenses exceed financing sources received as of the end of the reporting period.

J. Financing Sources

As disclosed in Note 1A, Congress enacted the Dodd-Frank Act that provides the CFTC with the authority to establish the Fund. Per the Act, the Fund is replenished through monetary sanctions resulting from judicial or administrative action brought by the Commission under the Commodity Exchange Act unless the balance of the Fund at the time the monetary judgment is collected exceeds \$100,000,000. All collections are first deposited into the CFTC's Civil Monetary Penalties, Fines and Administrative Fees receipt account. Eligible collections are then transferred from the receipt account into the Fund until the balance of the Fund exceeds \$100,000,000. These collections are reported as a financing source in the Fund's Statements of Changes in Net Position. No eligible collections were transferred into the Fund during FY 2025 because the available balance of the Fund did not fall below \$100,000,000.

K. Use of Management Estimates

The preparation of the accompanying financial statements in accordance with accounting principles generally accepted in the United States of America requires management to make certain estimates and assumptions that directly affect the results of reported assets, liabilities, revenues, and expenses. Actual results could differ from these estimates.

In addition to accruals for goods and services and whistleblower liabilities, management estimates were used to calculate overhead expenses in the amount of \$1,119,000 that were allocated to the Fund for the year ended September 30, 2025. These amounts were derived by multiplying management's estimated overhead cost per full-time equivalent (FTE) by the number of FTE charged to the Fund.

L. Reconciliation of Net Outlays and Net Cost of Operations

In accordance with OMB Circular A-136, the Fund reconciles its budgetary outlays with its net cost of operations (see Note 7).

M. Funds from Dedicated Collections

The Fund contains dedicated collections that can only be used to operate a whistleblower program and support customer education initiatives. See Notes 1A and 1J for a description of the purpose of the Fund and its authority to use applicable financing sources.

No new legislation was enacted as of September 30, 2025, that significantly changed the purpose of the dedicated collections or redirected a material portion of the accumulated balance.

N. Intra- and Inter-Agency Relationships

The CFTC is an independent Federal agency. The Commodity Futures Trading Commission Customer Protection Fund is a fund within the CFTC, and these financial statements present a segment of the CFTC financial activity. The financial events of the Fund are consolidated into the CFTC agency financial statements.

O. Limitations of the Financial Statements

The financial statements included in this report have been prepared to report the financial position and results of operations of the Fund, pursuant to the requirements of Section 748 of the Dodd-Frank Consumer Protection Act. While the statements have been prepared from the books and records of the CFTC in accordance with GAAP for Federal entities, these statements are in addition to the reports used to monitor and control the financial activity of the CFTC, which are prepared from the same books and records. The statements should be read with the understanding that they are for the Customer Protection Fund, a single fund within the CFTC.

Note 2. Fund Balance with Treasury

A. Reconciliation to Treasury

There are no differences between the fund balance reflected in the Fund's Balance Sheet and the balance in the Treasury account.

B. Fund Balance with Treasury

Fund Balance with Treasury as of September 30, 2025, consisted of the following:

	2025
Status of Fund Balance with Treasury	
Unobligated Balance	\$ 23,214,996
Obligated Balance Not Yet Disbursed	3,267,724
TOTAL FUND BALANCE WITH TREASURY	\$ 26,482,720

Obligated and unobligated balances reported for the status of Fund Balance with Treasury differ from the amounts reported in the Statement of Budgetary Resources due to the fact that budgetary balances are

supported by amounts other than Fund Balance with Treasury, such as amounts invested in Treasury securities.

The unobligated balance includes amounts available against which no claims have been recorded, balances in expired/canceled accounts, amounts restricted to future use, and amounts not apportioned for current use.

Note 3. Investments

The CFTC invests amounts deposited in the Fund in Treasury one-day certificates of indebtedness that are issued with a stated rate of interest to be applied to their par amount, mature on the business day immediately following their issue date, are redeemed at their par amount at maturity, and have interest payable at maturity.

The interest rates or prices of the one-day certificates of indebtedness are calculated based on market yields of Treasury financial instruments issued and trading in the Secondary Market (exchanges and over-the-counter markets where securities are bought and sold subsequent to original issuance). The Commission may invest in other short-term or long-term Treasury securities at management's discretion

The Commission's investment balance as of September 30, 2025, was \$234,000,000. Related nonexchange interest revenue for the period ended September 30, 2025, was \$10,825,401.

Intragovernmental Investments in Treasury Securities

The Federal Government does not set aside assets to pay future claims or other expenditures associated with funds from dedicated collections deposited into the Customer Protection Fund. The dedicated cash receipts collected by the Commission as a result of monetary sanctions are deposited in the Treasury, which uses the cash for general government purposes. As discussed above and in Note 1E, the Commission invests the majority of these funds in Treasury securities. These Treasury securities are an asset of the Commission and a liability of the Treasury. Because the Commission and the Treasury are both components of the government, these assets and liabilities offset each other from the standpoint of the government as a whole. For this reason, the investments presented by the Commission do not represent an asset or a liability in the U.S. Government-wide financial statements.

Treasury securities provide the Commission with authority to draw upon the Treasury to pay future claims or other expenditures. When the Commission requires redemption of these securities to make expenditures, the government finances those expenditures out of accumulated cash balances, by raising taxes or other receipts, by borrowing from the public or repaying less debt, or by curtailing other expenditures. This is the same manner in which the government finances all expenditures.

Note 4. General Property, Plant, and Equipment, Net

Property, Plant, and Equipment as of September 30, 2025, consists of a single application of software that is currently in development to assist the Commission's Whistleblower Office with the tracking of legal matters.

Note 5. Liability for Whistleblower Awards

As mentioned in Note 1A, the Fund will be used to pay awards to whistleblowers if they voluntarily provide original information to the CFTC that leads to the successful enforcement by the CFTC of a covered judicial or administrative action in which monetary sanctions exceeding \$1,000,000 are imposed. Whistleblowers are entitled to appeal any decisions by the Commission in regards to claims made against the Fund.

At the time the whistleblower voluntarily provides information to CFTC, they have no guarantee or promise that the Commission will exchange funds in return for that information. In accordance with federal accounting standards, the Commission records liabilities for these nonexchange transactions when they are due and payable. The Commission therefore records a liability for pending whistleblower payment after the whistleblower has been formally notified of an award and the related sanction, or some portion thereof, has been collected. The liability will be paid when the appeal period has ended, the whistleblower has provided necessary banking information, and, in cases where the related sanction was collected in a prior year and subsequently swept by Treasury at year-end, the award will be paid as future collections become available.

As of September 30, 2025, the Commission recorded liabilities for pending payments to whistleblowers of approximately \$399,675,304. During FY 2025, the Commission disbursed \$14,347,545 in whistleblower awards, which primarily consisted of \$4,618,643 from open and pending payments and \$9,728,902 from accounts payable at the end of FY 2024. Accounts payable as of September 30, 2025, includes \$1,502,521, for awards that have been finalized as of the end of the reporting period.

As of September 30, 2025, the Commission has awards in payable or paid status for which the full collections have not been received. While additional collections on these matters are considered remote, the Commission would be required to pay whistleblowers an additional \$30,277,233 if all collections were received on these matters. In addition to the pending and potential payments to whistleblowers, the Commission had additional whistleblower claims currently under review as of September 30, 2025. These additional claims, depending on whether the whistleblowers are determined to be eligible for an award and the related sanctions have been collected, could result in total future payments ranging from \$0 to \$997,651,224.

Note 6. Contingent Liabilities

The Fund records contingent liabilities for legal cases in which payment has been deemed probable and for which the amount of potential liability has been estimated, including judgments that have been issued against the Fund and which have been appealed. Additionally, the Fund discloses legal matters in which an unfavorable outcome is reasonably possible. There were no legal matters deemed probable or reasonably possible as of September 30, 2025.

Note 7. Statements of Budgetary Resources

A. Adjustments to Unobligated Balance Brought Forward, October 1

The Unobligated Balance Brought Forward from the prior fiscal year has been adjusted for recoveries of prior year paid and unpaid obligations. The Adjustments to Unobligated Balance Brought Forward, October 1, as of September 30, 2025, consisted of the following:

	2025
Unobligated Balance Brought Forward, October 1	\$ 234,943,020
Recoveries of Prior Year Obligations	5,546
UNOBLIGATED BALANCE FROM PRIOR YEAR BUDGET AUTHORITY, NET	\$ 234,948,566

B. Undelivered Orders

The amount of budgetary resources obligated for undelivered orders as of September 30, 2025, consisted of the following:

	2025
Undelivered Orders - Federal	
Paid	\$ 16,309
Unpaid	24,064
Total Undelivered Orders - Federal	\$ 40,373
Undelivered Orders - Non-Federal	
Paid	-
Unpaid	386,258
Total Undelivered Orders - Non-Federal	\$ 386,258
TOTAL UNDELIVERED ORDERS	\$ 426,631

The amount of undelivered orders represents the outstanding balance of all paid and unpaid obligations, including obligations that were originally recorded in a prior fiscal year.

C. Explanations of Differences between the Statement of Budgetary Resources and Budget of the United States Government

The Fund had no material differences between the amounts reported in the Statement of Budgetary Resources dated September 30, 2024, and the actual amounts reported in the Budget of the U.S. Government for FY 2024. The Budget of the U.S. Government with actual numbers for FY 2025 has not yet been published. The expected publish date is February 2026. A copy of the Budget may be obtained from OMB's website.

Note 8. Reconciliation of Total Net Cost of Operations to Net Outlays

Budgetary and financial accounting information differ. Budgetary accounting is used for planning and control purposes and relates to both the receipt and use of cash, as well as reporting the federal deficit. Financial accounting is intended to provide a picture of the government's financial operations and financial position so it presents information on an accrual basis. The accrual basis includes information about costs arising from the consumption of assets and the incurrence of liabilities. The reconciliation of net outlays, presented on a budgetary basis, and the net cost, presented on an accrual basis, provides an explanation of the relationship between budgetary and financial accounting information. This reconciliation serves not only to identify costs paid for in the past and those that will be paid in the future, but also to assure integrity between budgetary and financial accounting.

The schedule presented in this note reconciles the Total Net Cost of Operations reported in the Statements of Net Cost (accrual basis) with Net Outlays reported in the Statements of Budgetary Resources (budgetary basis). Differences between net costs and net outlays are primarily the result of timing differences and paying for assets that are used over more than one reporting period.

	2025
TOTAL NET COST OF OPERATIONS	\$ 369,873,433
Components of Net Cost That Are Not Part of Net Outlays:	
(Increase)/Decrease in Liabilities:	
Accounts Payable	7,975,538
Salaries and Benefits	(113,214)
Liability for Whistleblower Awards	(355,915,793)
Unfunded Annual Leave	(23,081)
Total Components of Net Cost That Are Not Part of Net Outlays	\$ (348,076,550)
Components of Net Outlays That Are Not Part of Net Cost:	
Increase in Advances and Prepayments	8,896
Nonexchange Interest Revenue (Excluding Interest Receivable)	(10,825,401)
Total Components of Net Outlays That Are Not Part of Net Cost	\$ (10,768,757)
AGENCY OUTLAYS, NET	\$ 11,028,126

Supplementary Schedule

**Commodity Futures Trading Commission
Customer Protection Fund
Cash Flow Analysis
For the Period from October 1, 2024 to September 30, 2025**

Cash flows from operating activities

Paid Expenses for Whistleblower and Consumer Education and Outreach Offices	\$	(21,853,527)
Refunds collected		1
Net cash flows from operating activities	\$	(21,853,526)

Cash flows from investing activities

Redemptions of US Treasury Securities	\$	19,000,000
Interest collected from investing in US Treasury Securities		10,825,401
Net cash flows from investing activities	\$	29,825,401

Net increase/(decrease) in cash and cash equivalents	\$	7,971,875
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BEGINNING CASH AS OF OCTOBER 1, 2024	18,510,845
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ENDING CASH AS OF SEPTEMBER 30, 2025	\$	26,482,720
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